

25STCV31438 25STCV31438

County: los-angeles

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Case Number: 25STCV31438 Hearing Date: September 4, 2026 Dept: 735

Motion to Compel Defendant Yan-Lin Kaye's Further Responses
to Special Interrogatories, Set One.

BACKGROUND

Plaintiff

Supply & Demand, Inc. filed this action against, among others, defendant Yan-Lin Kaye. On March 17, 2026, Plaintiff served its Special Interrogatories, Set One, on Kaye to which Kaye served responses on April 20, 2026. In the moving papers, Plaintiff alleges that Kaye provided objection-only responses to Special Interrogatories Nos. 1, 2, 3, 6, and 9. Following Plaintiff's April 24, 2026, meet and confer letter, the parties met and conferred by telephone on May 4, 2026. Plaintiff agreed to narrow certain defined terms and to extend the deadline to file supplemental responses to June 3, 2026. Kaye did not serve any responses by June 3, 2026; thus, Plaintiff proceeded with filing the instant Motion. Kaye subsequently served responses on August 24, 2026, the same day as her opposition was filed, to all of the Special Interrogatories. Based on the supplemental responses, Plaintiff does not seek further responses to the Special Interrogatories. Accordingly, Plaintiff's motion is moot.

SANCTIONS

Plaintiff requests sanctions in the amount of \$5,644.50 as follows: \$2,782.50 for 3.5 hours spent preparing the Motion and \$2,862.00 for 3.6 hours spent preparing the Reply, at a billing rate

of \$795. Kaye argues that sanctions are not warranted because her objection-only responses were justified.

Although the Motion is denied as moot, the Court finds that sanctions are warranted because Kaye did not provide further responses until the Motion was filed and an opposition was due. Moreover, Kaye's opposition does not present substantial justification for failure to respond to the discovery and fails to address the two-month delay in serving the supplemental responses.

The Court finds the hourly rate presented in the moving papers and reply to be reasonable; however, the time spent appears excessive. Accordingly, the Court awards \$3,577 in sanctions for 3.5 hours spent preparing the Motion and one hour preparing the Reply. The Court denies Kaye's request for sanctions.

CONCLUSION

Plaintiff

Supply & Demand, Inc.'s Motion to Compel Defendant Yan-Lin Kaye's Further Discovery Responses to Special Interrogatories, Set One is denied as moot.

Plaintiff's

request for monetary sanctions is granted in the amount of \$3,577, to be paid by Defendant Yan-Lin Kaye within 30 days.

Plaintiff

to give notice.

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REQUESTS FOR ADMISSIONS

Plaintiff propounded

Requests for Admission, Set One, on Defendant Yan-Lin Kaye ("Defendant"), on March 17, 2026. To the ten requests at issue, Nos. 11-14, 16-18, and 20-22, Defendant interposed objections only. The parties met and conferred by telephone on May 4, 2026, whereby Plaintiff agreed to narrow certain defined terms. Defendant served no supplemental responses. On the same day the Opposition was due, Defendant served further responses to answer most of the requests at issue. However, Plaintiff argues in Reply that two

requests remain deficient: Request No. 13, and Request No. 20.

RFA No. 13: Grant. The Court

agrees with Plaintiff that the narrowing of the terms moot Defendant's ambiguity argument and Defendant's response is not Code-complaint. As to the Code of Civil Procedure section 2033.060(g) objection, it provides: "A party requesting an admission of the genuineness of any documents shall attach copies of those documents to the requests, and shall make the original of those documents available for inspection on demand by the party to whom the requests for admission are directed." Here, there is no request for the genuineness of a document. Thus, this does not apply.

Further, the response does not fully answer the question. Code of Civil Procedure Section 2033.220(b) requires an answer to admit so much of the matter as is true, deny so much as is untrue, and specify so much as to the truth of which the responding party lacks sufficient information or knowledge. The response admits a portion of the request (by limiting the response to "money consideration"), leaving substantial doubt as to whether the other portion of the request ("consideration" whether or not money) is true or not.

RFA No. 20: Grant.

Defendant does not explain why the request would refer to Anthony Kaye and Yan-Lin Kaye in their capacity as officers when Plaintiff has agreed it means individually. Civil Code Section 3295(c) applies to punitive damages which are not at issue. The response states that Defendant lacks the personal knowledge sufficient to respond. "If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter." (CCP section 2033.220(c).) As Defendant fails to state a reasonably inquiry was made, the response is still not code-complaint.

Sanctions

Plaintiff requests

sanctions against Defendant and her counsel in the total sum of \$8,109. Defendant failed to address the two-month delay in serving supplemental responses and

maintained her objections which were not justified. Accordingly, the Court awards \$8,109 in sanctions against only Defendant. The Court denies Defendant's request for sanctions.

Conclusion

Defendant shall provide a Code compliant responses within 10 days. Sanctions are payable within 90 days.

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.Requests for Production, Set One.

On March 17, 2026, Plaintiff served its Request for Production of Documents, Set One, on Yan-Lin Kaye, who served responses on April 20, 2026. In the moving papers, Plaintiff alleges that Kaye either provided objection-only responses with no statement of compliance, inability, or production, or conditioned production of documents on a stipulated protective order. No documents were produced. Following Plaintiff's April 24, 2026, meet and confer letter, the parties met and conferred by telephone on May 4, 2026. Plaintiff agreed to narrow certain defined terms, to extend the deadline to file supplemental responses to June 3, 2026, and to stipulate to a protective order. Kaye did not produce any documents or serve any responses by June 3, 2026, and did not circulate a protective order. Another meet and confer attempt, scheduled for June 5, 2026, failed because defense counsel cancelled it minutes before the meeting. Thus, Plaintiff proceeded with filing the instant Motion. Kaye subsequently served responses on August 20, 2026, the same day as her opposition was filed, to all Requests for Production with the exception of Requests Nos. 4, 6, and 7, arguing that those requests are overbroad and not reasonably particularized. Based on the supplemental responses, Plaintiff continues to seek further responses to Requests Nos. 1, 4, 5, 6, and 7.

Request
for Production No. 1

GRANT. The further responses are inadequate, incomplete, and evasive. Yan-Lin must serve

a code-compliant further response that either provides a complete representation of inability to comply in accordance with Code of Civil Procedure section 2031.230 or a complete statement of compliance in accordance with section 2031.220.

Request
for Production No. 4

GRANT. The request is confined to an identified property, transfer, date, transferor, and transferee, and enumerates specific categories of responsive documents. Furthermore, Civil Code section 3295, subdivision (c) restricts pretrial discovery of a defendant's financial condition sought in support of a punitive damages claim, not facts that constitute elements of a cause of action for fraudulent transfer. The narrowing of the terms moots Defendant's ambiguity argument and the Court has approved the parties' stipulated protective order. Thus, Yan-Lin's objections are overruled, except those based on privilege and work-product, and any documents withheld on that basis must be identified in a privilege log.

Request
for Production No. 5

GRANT. The request is confined to a single identified property and a single identified transfer to a specific trust. Furthermore, Civil Code section 3295, subdivision (c) restricts pretrial discovery of a defendant's financial condition sought in support of a punitive damages claim, not facts that constitute elements of a cause of action for fraudulent transfer. The narrowing of the terms moots Defendant's ambiguity argument and the Court has approved the parties' stipulated protective order.

Request
for Production No. 6

GRANT. In response to Yan-Lin's argument that the request is overbroad, Plaintiff is willing to narrow the request to documents sufficient to show the fair market value of the Property on or about March 12, 2024, including appraisals, assessments, tax assessments, and comparable sales analyses from a reasonable period surrounding that date. The Court finds the reformulated, narrow

request to be appropriate.

Request

for Production No. 7

GRANT. In response to Yan-Lin's argument that the request is overbroad, Plaintiff proposes the following formulation: documents sufficient to show the nature, amount, source, and payment of any consideration Defendant contends she gave in exchange for the March 12, 2024 transfer. The Court finds this reformulated, narrow request to be appropriate. Any documents withheld on the basis of attorney-client privilege or work-product must be identified in a privilege log.

SANCTIONS

Plaintiff

requests sanctions in the amount of \$8,188.50 as follows: \$4,372.50 for 5.5 hours spent preparing the Motion and \$3,816 for 4.8 hours spent preparing the Reply, at a billing rate of \$795. Given that the Motion is granted, the Court finds that sanctions are warranted. Kaye's opposition does not present substantial justification for failure to respond to the discovery and fails to address the two-month delay in serving the supplemental responses. The Court finds the hourly rate presented in the moving papers and Reply to be reasonable; however, the time spent appears excessive. Accordingly, the Court awards \$4,770 in sanctions for 3 hours spent preparing the Motion and 3 hours preparing the Reply. Accordingly, the Court denies Defendant's request for sanctions.

CONCLUSION

Plaintiff

Supply & Demand, Inc.'s Motion to Compel Defendant Yan-Lin Kaye's Further Discovery Responses to Requests for Production, Set One is granted. Defendant Kaye is ordered to provide code-compliant responses to Requests for Production Nos. 1, 4, and 5 and Plaintiff's revised Requests Nos. 6 and 7. Responses must be served within 20 days of the Court's order.

Plaintiff's

request for monetary sanctions is also granted in the amount of \$4,770, to be

paid by Defendant Yan-Lin within 30 days of the Court's order.

Plaintiff

to give notice.